

Court No. - 36

Case :- WRIT - C No. - 46692 of 2010

Petitioner :- Ramji Lal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- C.S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

On the request of Sri Rajesh Tripathi, learned counsel appearing for the respondent nos. 1 and 2 put up as a fresh case on 16th August, 2010 in order to enable him to obtain instructions.

Order Date :- 9.8.2010

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Court No. - 36

Case :- WRIT - C No. - 46692 of 2010

Petitioner :- Ramji Lal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- C.S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

On the request of Shri Rajesh Tripathi, learned counsel for the respondents,
put up as fresh on 23.8.2010.

Order Date :- 19.8.2010

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Court No. - 36

Case :- WRIT - C No. - 46692 of 2010

Petitioner :- Ramji Lal

Respondent :- Dakshinanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Ashwani Kumar Mishra

Respondent Counsel :- C.S.C.

Hon'ble R.K. Agrawal,J.

Hon'ble Rajesh Chandra,J.

Sri Rajesh Tripathi, learned counsel appearing on behalf of the respondent no. 2 has stated that the copy of the checking report and provisional assessment was sent to the petitioner under certificate of posting. Under regulation 9.3 of the U.P. Electricity Supply Code, 2005, service of notice has been prescribed through Registered post, Courier post or by publication in daily newspaper commonly read in the concerned locality. It is pointed out that service under certificate of posting is not proper under regulation 9.3 of the U.P. Electricity Supply Code, 2005 and therefore we are of the considered opinion that the provisional assessment sent under certificate of posting to the petitioner is not justified in accordance with law. We direct the respondent no. 2 to serve the copy of the provisional assessment order upon the petitioner by Registered post and after the same is received, the petitioner will have two weeks time to file his objection. The objection shall be decided by respondent no. 2 in accordance with law.

Till the final assessment is passed, the recovery made against petitioner pursuant to citation dated 22.09.2009 shall remain stayed. The writ petition stands allowed.

Order Date :- 23.8.2010

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